

Dispute Chamber

Decision on the merits 59/2025 of March 24, 2025

File number: DOS-2022-02230

Subject: Use of data for commercial communication (direct marketing)

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, sole presiding chairman;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and concerning the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter GDPR;

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter WOG;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"; and

The defendant:

Y N.V, represented by Mr. Peter van Dyck and Mr. Margaux Dejonghe, both based at Tervurenlaan 268A, 1150 Brussels, hereinafter "the defendant".

Decision on the merits 59/2025 – 2/22

I. Facts and procedure

1. On May 18, 2022, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. In his complaint, the complainant states that he purchased glasses at a location of the defendant in July 2018. At checkout, his email address was requested to keep the complainant informed about the delivery of his purchase. The complainant asserts that he had no contact with the defendant in the following years, did not create an account, and did not subscribe to the defendant's newsletter. However, on December 6, 2021, the complainant received a direct marketing email from the defendant without having granted his consent for this. Subsequently, on December 19, 2021, the complainant submitted a request for access to the defendant, among other things to ascertain why he received this direct marketing email. The defendant provided the requested information on January 18, 2022. The complainant notes that this information was anonymized and questions the defendant about it. The defendant indicates that the information was anonymized due to a human error. The complainant then states that the defendant ultimately succeeded in restoring (certain) data but that they were unable to inform him about the legal basis on which the direct marketing messages were sent. The complainant asserts that the privacy policy also does not provide information on this matter.

3. On May 15, 2022, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 WOG and the complaint was forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

4. On June 20, 2022, in accordance with Article 96, § 1 WOG, the request from the Dispute Chamber for an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

5. On August 10, 2022, the investigation by the Inspection Service was completed, the report was added to the file, and the file was forwarded by the Inspector General to the chairman of the Dispute Chamber (Article 91, § 1 and § 2 WOG). The report contains findings regarding the subject of the complaint and concludes that there is:

1. a violation of Article 5.1. a) and 5.2, and Article 6.1 GDPR;
2. a violation of Article 5, Article 24.1 and Article 25.1 and 25.2;
3. a violation of Article 12.1, 12.2 and 12.3, Article 15.1 GDPR; and

4. a violation of Article 12.1, Article 13.1 and 13.2, Article 5.2, Article 25.1 and Article 25.2 GDPR.

Decision on the Merits 59/2025 – 3/22

The report also contains findings that go beyond the subject matter of the complaint.

The Inspection Service establishes, in broad terms, that there is:

5. a violation of Articles 30.1, 30.3, and 30.4 GDPR; and

6. a violation of Articles 38.1 and 39 GDPR.

6.

On August 22, 2022, the Dispute Chamber decides, based on Article 95, § 1, 1° and Article 98 WOG, that the file is ready for substantive treatment.

7.

On August 22, 2022, the parties involved are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed, pursuant to Article 99 WOG, of the deadlines for submitting their defenses.

Regarding the findings related to the subject matter of the complaint, the deadline for receipt of the respondent's statement of defense was set for October 17, 2022, the deadline for the claimant's reply was set for November 7, 2022, and finally, the deadline for the respondent's rejoinder was set for November 28, 2022.

Regarding the findings outside the subject matter of the complaint, the deadline for receipt of the respondent's statements of defense was set for October 17, 2022.

8.

On October 7, 2022, the respondent requests a copy of the file (Article 95, § 2, 3° WOG), which was provided to them on October 10, 2022.

9.

On October 17, 2022, the Dispute Chamber receives the respondent's statement of defense regarding the findings concerning the subject matter of the complaint. The respondent primarily argues that they have not violated the GDPR. They assert that the processing of the claimant's personal data for direct marketing purposes constitutes lawful processing on their part, in accordance with Article 5.1.a) GDPR, Article 5.2 GDPR, and Article 6.1 GDPR. The respondent further states that they have taken sufficient technical and organizational measures, and continue to take them, to protect the privacy of the data subjects and thus act in accordance with Articles 5, 24.1, and 25.1 and 25.2 of the GDPR. Additionally, the respondent claims that there is no violation, and certainly no substantial violation, of Articles 12 and 13 GDPR. The statement of defense also contains the respondent's response to the findings made by the Inspection Service outside the scope of the complaint. Regarding the identified violations by the Inspection Service concerning the register of processing activities, the respondent asserts that the register meets all the requirements of the GDPR and even goes a step further than what is legally required, thus there is no violation of Article 30 GDPR. Finally, the respondent argues that there is also no violation of Articles 38.1 and 39 GDPR.

10.

On November 2, 2022, the Dispute Chamber receives the claimant's reply, in which the claimant disputes the respondent's position regarding the findings related to the subject matter of the complaint. The claimant states that there is indeed a violation of Articles 5.1.a) and 6.1 GDPR. The claimant further argues that their request for access pursuant to Article 15 GDPR has not been met, nor have the requirements of Article 17 GDPR been fulfilled, resulting in a violation of the GDPR.

11.

On November 28, 2022, the Dispute Chamber receives the respondent's rejoinder regarding the findings related to the subject matter of the complaint. In this, the respondent reiterates their positions from the statements of defense.

12.

On December 16, 2024, the parties are informed that the hearing will take place on February 19, 2025.

13.

On February 19, 2025, the respondent is heard by the Dispute Chamber. The respondent took the opportunity to elaborate on the organization of their company, active in multiple EU member states, including how data protection is embedded in the organization. The claimant, although duly

summoned, did not appear.

14.

On February 27, 2025, the minutes of the hearing are presented to the attending party.

15.

On March 7, 2025, the Dispute Chamber receives some comments from the respondent regarding the minutes, which it decides to include in its deliberation.

II. Justification

II.1. Article 5.1.a) (lawfulness) in conjunction with Article 6.1 GDPR

16.

From the complaint, the Dispute Chamber understands that the claimant raises the issue that the respondent used their personal data, which they had provided in the context of a purchase from the respondent, several years later for sending direct marketing.

17.

It is therefore up to the Dispute Chamber to assess whether the sending of the aforementioned direct marketing emails by the respondent to the claimant constitutes lawful processing on their part.

Decision on the Merits 59/2025 – 5/22

18.

During the inspection investigation, the respondent asserts that it relies on legitimate interests, as referred to in Article 6.1.f) GDPR, as the legal basis for processing the complainant's personal data for sending direct marketing emails. However, the Inspection Service finds that the respondent unlawfully invokes this legal basis. The Inspection Service takes the position that the third condition for a lawful reliance on Article 6.1.f) GDPR has not been met, namely the balancing of interests, since the fact that the complainant's personal data was processed in 2018 in the context of a purchase does not imply that he can expect that such personal data will be used without his consent in 2021 and 2022 for direct marketing purposes.

19.

The complainant refers to the general terms and conditions attached to the sales receipt, which state the following: "Purposes. By signing this order receipt, the customer [the respondent] gives explicit consent to the aforementioned processing of his personal data, in particular the personal data concerning his health, acknowledges that he has given his prior, free, specific, and informed consent to receive commercial communications by electronic mail, and furthermore accepts the application of the general terms and conditions printed on this order receipt." The complainant asserts that the respondent has 'switched' from consent as a legal basis to legitimate interest.

20. The respondent reiterates in its conclusions that, contrary to what the complainant claims, it does not rely on consent as the legal basis for the direct marketing emails, but rather on legitimate interest.

21.

The respondent states that consent is indeed mentioned as a legal basis in the sales receipt, but that the privacy statement clarifies that consent is only requested if legally required: "As far as legally required, [the respondent] requests your consent before using your personal data for these purposes." In the sales receipt, the privacy statement, and the communication with the complainant in the stores, there is a consistent reference to processing for direct marketing purposes and the provision of services in the interest of the data subject and the data controller, which presupposes the legal basis of legitimate interests.

22.

The Dispute Chamber reminds that it is the responsibility of the data controller to identify the appropriate legal basis. The choice of the appropriate legal basis must be made before the processing activity begins and communicated transparently to the data subjects (for example, via the privacy statement¹).

¹ Regarding the transparency obligations, the Dispute Chamber refers to Part II.3 of this decision.

Decision on the Merits 59/2025 – 6/22

The Dispute Chamber establishes that the respondent invokes consent as the legal basis for sending direct marketing in the sales receipt. It states the following: "[...] he acknowledges having given his

prior, free, specific, and informed consent for the receipt of commercial communications by electronic mail,[...]”. On the other hand, the respondent relies during this procedure on legitimate interest (Article 6.1.f) GDPR) as the legal basis for the processing of personal data in the context of direct marketing. The Dispute Chamber will assess whether the respondent could lawfully invoke one of the two legal bases.

23.

The Dispute Chamber notes that the respondent relies on the legal basis of legitimate interest under Article 6.1.f) GDPR during the inspection investigation, in its conclusions, and during the hearing, which leads the Dispute Chamber to proceed with an assessment of the application of this legal basis.

24.

The disputed (unsolicited) communication is aimed at informing customers about promotional actions organized by the respondent. The message is directed at identified natural persons (cf. the addressing by name) and is sent via electronic communication, specifically by e-mail. The Dispute Chamber therefore establishes that the emails, as received by the complainant, constitute direct marketing. Therefore, the respondent may lawfully invoke legitimate interest under Article 6.1.f) GDPR, provided that the conditions are met, meaning that the complainant does not need to give consent in this regard.

25.

For a lawful invocation of Article 6.1.f) GDPR, three conditions must be met: purpose test, necessity test, balancing of interests. Regarding the purpose test, the Dispute Chamber refers to Recital 47 GDPR, which explicitly states that the processing of personal data for the purpose of direct marketing can be considered as carried out with a view to a legitimate interest (Article 6.1 f) GDPR), thereby satisfying the purpose test. The second condition also appears to be met, as the name and email address are necessary for sending direct marketing by email. Finally, the interests or fundamental rights of the data subject must not outweigh the interests of the data controller or the third party in order to successfully invoke Article 6.1.f) GDPR, which must always be assessed in light of the specific circumstances of the case. The respondent argues that the balancing of interests in the context of the general practice of sending direct marketing should weigh in its favor. It states that the individuals are informed via the store employee, the sales receipt, and the privacy statement regarding the fact that direct marketing is sent, that the direct marketing emails relate to products that are similar to the products that the individuals have previously purchased from it, that the processed personal data is limited, and that sending direct marketing is a common practice in the sector.

Decision on the Merits 59/2025 – 7/22

Thus, the respondent concludes that its usual practice of sending direct marketing is lawful based on Article 6.1.f).

26.

However, the respondent acknowledges that the complainant should not have received these mailings in 2021 and 2022. The mailings were sent due to a data migration during which a technical error occurred, despite prior risk analyses that were conducted. Due to this technical error, the complainant's opt-out was – incorrectly – temporarily converted to an opt-in. Furthermore, the respondent points out that, aside from this incident, the data processing for direct marketing purposes fully complies with all requirements of the applicable legislation, namely that all requirements from Article 6.1.f) GDPR are adhered to. The respondent clarifies during the hearing that it is not aware of any other individuals who experienced the same issue.

27.

The Dispute Chamber is of the opinion that the respondent's usual practice of sending direct marketing emails does not in itself constitute a violation of Article 6.1.f). The Dispute Chamber follows the respondent's argumentation regarding the balancing of interests and adds that the direct marketing emails also contain an unsubscribe link, allowing individuals to exercise their right to object in a straightforward manner.

28.

In accordance with Article 21.2 GDPR, the data subject whose personal data is processed for direct marketing purposes has the right to object at any time to the processing of this personal data for such marketing. In this case, the complainant exercised his right to object, as the respondent also

acknowledges, resulting in him not receiving direct marketing for three years. It was therefore not within his reasonable expectations that, after exercising his right to object, which was respected by the respondent for three years, his personal data would still be processed for direct marketing. Moreover, this contradicts Article 21.3 GDPR, which states that when the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for these purposes. Consequently, the balancing of interests in this case favors the complainant, meaning that the third condition for a lawful reliance on Article 6.1.f) GDPR is not met. The Dispute Chamber therefore concludes that the sending of direct marketing emails to the complainant in 2021 and 2022 constitutes a violation of Article 6.1.f) GDPR.

29. To the extent necessary, the Dispute Chamber examines whether the respondent can lawfully rely on consent as a legal basis as indicated on the sales receipt. Article 4 of the GDPR defines "consent" of the data subject as "any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them." Consequently, for consent to be in accordance with the GDPR, it must meet the following cumulative conditions: it must be (i) freely, (ii)

Decision on the Merits 59/2025 – 8/22

specifically, (iii) informed and (iv) unambiguous. Consent is considered freely given if it concerns a genuine choice of the data subject, who must be deemed to have real control over their decision. The Dispute Chamber finds that the signing of the sales receipt by the complainant cannot count as freely given consent for receiving direct marketing. The Dispute Chamber points to the requirement for the granularity of consent, whereby the purposes of the processing must be separated and consent must be requested for each purpose. Since the respondent links the signing of the sales receipt to, among other things, granting consent for sending direct marketing, the Dispute Chamber finds that the requirement for free consent has not been met. Consequently, reliance on consent as a legal basis pursuant to Article 6.1.a) GDPR cannot succeed.

II.2. Article 12.1, 12.2 and 12.3, Article 15.1 GDPR

30. The Inspection Service finds that there has been a violation of Articles 12.1, 12.2, 12.3, and Article 15.1 GDPR, as more than five months have elapsed between the receipt of the request for access and the delivery of all information to the complainant. The Inspection Service also refers to the fact that the respondent acknowledges that the personal data were deleted due to human error, which should not have occurred. The Dispute Chamber will assess whether there is a violation of the aforementioned articles in this case.

31. According to Article 15.1 of the GDPR, the data subject has the right to obtain confirmation from the data controller as to whether or not their personal data is being processed. If that is the case, the data subject has the right to access that personal data and the information mentioned in Article 15, paragraph 1 a) - h), such as the purpose of the processing of the data and any recipients of the data, as well as information about the existence of their rights, including the right to request rectification or erasure of their data, or to lodge a complaint with the GBA. The purpose of the right of access is to enable the data subject to understand how their personal data is processed and what the implications are, as well as to verify the accuracy of the processed data without having to justify their intention.

32. Article 12 of the GDPR concerns the manner in which data subjects can exercise their rights and stipulates that the data controller must facilitate the exercise of those rights by the data subject (Article 12.2 of the GDPR), and must respond promptly and in any case within a reasonable timeframe.

2 EDPB Guidelines 01/2022 on the rights of data subjects — Right of access, dated January 18, 2022, can be consulted via https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_nl.pdf, para 13.

Decision on the Merits 59/2025 – 9/22

case must provide information regarding the measures taken in response to his request within one month of receipt of the request (Article 12.3 of the GDPR).

33. The Inspection Service states in its Inspection Report that the complainant's request to exercise his right of access was received by the respondent on December 19, 2021. The respondent only provided all the information that must be communicated under Article 15.1 GDPR on July 11, 2022, more than

six months later and after receiving questions from the Inspection Service. The Inspection Service also refers to the fact that the complainant's personal data was, at one point, "deleted due to human error" by the respondent and that the respondent has explicitly acknowledged that this should not have happened.

34. In its conclusions, the respondent argues that there can be no doubt that it indeed respected the one-month response period. The request for access was submitted on December 19, 2021. Given Article 12.3 GDPR, the respondent had until January 19, 2022, to provide the requested information. On December 27, 2021, the respondent responded to the request, asking the complainant to provide additional information so that it could comply with the request. On December 29, 2021, the respondent received the necessary information. Subsequently, the respondent replied to the request for access on January 18, 2022, which was within the legal timeframe, regardless of the fact that the requested additional information was only obtained on December 29, 2021. The respondent adds that it must at least be acknowledged that the response from the respondent dated January 18, 2022, qualifies as an initial response within the legal timeframe and that the subsequent responses provided in the months of February to July are the result of additional requests from the complainant, which justifies the additional two-month period.

35. The complainant argues that he did not receive a complete copy of his personal data, although this is prescribed under Article 15 GDPR, but only an overview of personal data after anonymization. The complainant points out that if the respondent mistakenly requested the procedure following a request for data deletion, it has also failed to comply with Article 17 GDPR in this respect. This article requires a complete deletion and not merely an anonymization, according to the complainant.

36. The Dispute Chamber notes that the complainant exercised his request on December 19, 2021. On December 27, 2021, the respondent requested additional information (i.e., his name, date of birth, and the establishment where he was last a customer) for the purpose of identifying the complainant. The complainant provided this information to the respondent on December 29, 2021. On the same day, the respondent confirms receipt and informs the complainant that his

Decision on the Merits 59/2025 – 10/22

the request is being processed. On January 18, 2022, the respondent responded to the request for access, albeit in an incomplete manner according to the complainant.

37.

The Dispute Chamber points out that the complainant wished to know on what legal basis the respondent relies for sending (unwanted) direct marketing. The complainant writes in his email dated January 30, 2022, regarding this: "However, I am missing information concerning the use of my data for commercial purposes. When and how did I give consent for the use of my data to receive newsletters/advertisements from [the respondent]? Or what other legal basis, as provided under Article 6 of the GDPR, do you use for processing my data for these purposes?" The respondent's response dated February 2, 2022, refers to the privacy statement and sends the following passage from it to the complainant: "Your personal data will be used by [the respondent] to answer questions you have posed, to inform you about current and future activities and actions of [the respondent], for sending electronic newsletters, for sending advertisements by post, for statistical purposes, and for automated data processing. Your special personal data will only be used for the service provision. As far as legally required, [the respondent] requests your consent before using your personal data for these purposes." Consequently, the complainant inquires whether the respondent is relying on Article 6.1.a) GDPR, namely consent. The respondent replies on February 24, 2022, as follows: "[the respondent] reserves the right to use the data collected in the context of the sale of a product or service for direct marketing of similar products or services, in accordance with applicable law (GDPR and the Royal Decree)." When the complainant points out via email dated February 25, 2022, that this information is insufficient to obtain an answer to his questions regarding the legal basis, the respondent reiterates on March 9 that his "data [is processed] in accordance with GDPR Article 6 and the Royal Decree of April 4, 2003, regulating the sending of advertising by email."

38. The Dispute Chamber finds that the respondent has responded to the request for access within the one-month period prescribed by Article 12.3 GDPR. They have provided the information they had after the mistake that led to the anonymization and have later supplemented it. However, the information

provided by the respondent in response to the complainant's question regarding the invoked legal basis for sending the direct marketing emails was not transparent, nor in clear and simple language as required by Article 12.1 GDPR. The email dated February 24, 2022, only refers to the "applicable law (GDPR and Royal Decree)," which does not meet the requirements regarding transparency and clarity. Even when the complainant points this out, the respondent remains unclear. In their email dated March 9, 2022, they refer to Article 6 GDPR and clarify which royal decree they are referring to.

Decision on the Merits 59/2025 – 11/22

However, the respondent makes no reference to Article 6.1.f) GDPR. The right of access is the gateway to exercising other rights, making the receipt of clear information, such as regarding the invoked legal basis, essential for the data subject to exercise any further rights. The Dispute Chamber therefore concludes that there has been a violation of Article 12.1 GDPR concerning the response to the right of access.

39. The respondent acknowledges having treated the request for access as a request for erasure, whereby the personal data of the complainant was anonymized. They point out that they were still able to provide certain personal data to the complainant. As far as necessary, the Dispute Chamber points out that the pseudonymization of personal data or, according to the respondent, anonymization to the extent that it could be restored potentially does not comply with the right to erasure in accordance with Article 17.

Decision on the Merits 59/2025 – 12/22

GDPR. Since any potential infringement of Article 17 GDPR was not part of the adversarial debates, the Dispute Chamber will not elaborate further on this.

II.3. Article 12.1, Article 13.1 and 13.2 GDPR

40. The Dispute Chamber must determine whether the complainant was adequately informed about the disputed processing to meet the requirements of Article 12.1, and Article 13.1 and 13.2 GDPR.

41. Based on Article 12.1 and Article 13.1 and 13.2 of the GDPR, it is necessary for the respondent as the data controller to provide data subjects with concise, transparent, and understandable information about the personal data being processed. The aforementioned transparency obligations are a specification of the general transparency obligation of Article 5.1.a) of the GDPR.

42. Article 12.1 GDPR stipulates that the data controller must take "appropriate measures" to ensure that the data subject receives the information referred to in Articles 13 and 14 [...] regarding the processing in a concise, transparent, understandable, and easily accessible form and in clear and plain language, especially when the information is specifically intended for a child. According to Recital 39 of the GDPR, the obligation of transparency means that individuals must be informed in an accessible and understandable manner, including about how their rights can be exercised. When data is collected directly from the data subjects, as is the case here, all information mentioned in Article 13 GDPR must be communicated to the data subject at the time the data is obtained.

Findings in the Inspection Report

43. The Inspection Service states in its report that the information on the sales receipt from 2018 is unclear and incomplete. The sales receipt is unclear because it uses vague wording and does not clearly indicate that the complainant will actually receive direct marketing emails ("the development of business relationships with the customer and customer management, possibly through direct marketing"). The sales receipt is incomplete as not all information, as required under Article 13 GDPR, is mentioned. According to the findings of the Inspection Service, the following elements are missing: the contact details of the data protection officer, the retention period, the right to restriction and the right to data portability, the right to withdraw consent, and the right to lodge a complaint with the supervisory authority.

Position of the Respondent

Decision on the Merits 59/2025 – 13/22

44. The respondent cannot agree with the findings in the Inspection Report. It states that the sales receipt is indeed clear. Regarding the sales receipt, the respondent notes that it explicitly refers to direct marketing. The fact that the sales receipt mentions that there may be processing for direct marketing does not change the clarity of the sales receipt, the respondent argues. One cannot

reasonably expect the data controller to state with full certainty in advance that direct marketing emails will be sent to a specific customer. In the context of transparency, the respondent has therefore chosen to inform its customers via the sales receipt that their personal data may be processed for direct marketing purposes. The privacy statement also indicates that personal data may be used for direct marketing purposes. Since June 1, 2018, the respondent has instructed all employees in its stores, through publication on the intranet, to inform customers at every handover of a sales receipt that their data will be processed in the context of "service messages and personal tips" and that the customer, if they no longer wish to receive such emails, can find an unsubscribe button at the bottom of the emails. Finally, the respondent emphasizes that sending direct marketing emails is a particularly common practice in the sector. Customers are therefore accustomed to, or at least can expect, to receive promotional messages.

45. Regarding the finding that the sales receipt would be incomplete, the respondent points out that the information from the 2018 sales receipt, in combination with the 2018 privacy statement linked in each direct marketing message, is virtually complete. Through the layered approach in the sales receipt and privacy statement, customers had access to the required information. Without acknowledging any infringement of Articles 12 and 13 GDPR, the respondent states in its conclusions that it will make the following adjustments to its privacy statement:

- Clearly indicate what the contact details of the data protection officer are, as well as indicate that data subjects may contact the officer with any questions or comments regarding the processing of their personal data;
 - Indicate the retention period of the processed personal data, or at least the criteria used to determine that retention period; and
 - Clarify that data subjects have the right in certain circumstances to (i) restrict the processing of their personal data by the respondent and (ii) withdraw their consent for the processing of personal data.
- Additionally, it will also adjust its sales receipt by including a link to the privacy statement at the bottom. A number of technical measures are still required for this.

Decision on the Merits 59/2025 – 14/22

to be taken via the Customer Relationship Management platform (hereinafter: CRM platform).

46. The Dispute Chamber finds that the sales receipt and the privacy statement were unclear. The passages in the sales receipt and the privacy statement regarding the legal basis for processing personal data refer to two different legal bases, namely consent in the sales receipt and legitimate interest in the privacy statement. The Dispute Chamber acknowledges that a layered approach can be interesting in order to communicate the most important information to the parties involved via the sales receipt. However, the Dispute Chamber refers to the passage regarding the processing of personal data: Purposes. By signing this order receipt, the customer [the respondent] gives explicit consent to the aforementioned processing of his personal data, in particular the personal data concerning his health, acknowledges that he has given his prior, free, specific, and informed consent for receiving commercial communications by electronic mail, and furthermore accepts the application of the general terms and conditions printed on this order receipt. The respondent states that this must be read in conjunction with the privacy statement which states: Your personal data will be used by [the respondent] to answer questions you have posed, to inform you about the current and future activities and actions of [the respondent], for sending electronic newsletters, for sending advertising by post, for statistical purposes, and for automated data processing. Your special personal data will only be used for the provision of services. To the extent required by law, [the respondent] requests your consent before using your personal data for these purposes. The Dispute Chamber, however, is of the opinion that this passage in the privacy statement is also unclear, as it does not clarify per processing when it is legally required to request consent for a processing. The Dispute Chamber reminds that it recommends as a best practice that data controllers should break down information about their processing activities by purposes and legal bases, so that it is clear to the parties involved.

Furthermore, the Dispute Chamber follows the respondent's view that the use of the word "possibly" in the phrase ("the development of business relationships with the customer and customer management, possibly through direct marketing") does not in itself lead to ambiguity. The privacy statement is, after all, a general document made available to all parties involved, and it is possible that not every party

involved receives these direct marketing emails, for example, because they have exercised their right to object or because they have not provided their email address.

47. The Dispute Chamber finds that the privacy statement was incomplete, as established by the Inspection Service. During the hearing, the respondent provided the Dispute Chamber with the most recent version of the privacy statement. The Dispute Chamber finds that the privacy statement was amended so that the breaches regarding the incompleteness of the privacy statement as established by the Inspection Service were remedied.

48. The Dispute Chamber finds that there were (historical) breaches of Article 12.1 and Article 13.1 and 13.2 of the GDPR, but that these have since been remedied.

II.4. Article 5.2, Article 24.1, and Article 25.1 and 25.2 of the GDPR

49. Article 24.1 of the GDPR obliges the data controller to take appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with the GDPR, taking into account the nature, scope, context, and purpose of the processing, as well as the varying risks to the rights and freedoms of natural persons in terms of likelihood and severity. These measures must also be evaluated and updated as necessary. This article reflects the "accountability" laid down in Article 5.2 of the GDPR, according to which "the data controller is responsible for compliance with paragraph 1 (accountability) and must be able to demonstrate this." Article 24.2 of the GDPR states that, when proportionate to the processing activities, the measures mentioned in Article 24.1 of the GDPR include an appropriate data protection policy that is implemented by the data controller.

50. It is also the responsibility of the data controller to effectively integrate the necessary compliance with the rules of the GDPR into the design of its processing activities and its procedures, in accordance with Articles 24 (accountability) and 25 of the GDPR (data protection by design and by default).

51. The Dispute Chamber points out that the respondent is a large company that processes personal data of (sensitive) nature, which entails risks for the parties involved. The Dispute Chamber finds that the respondent has a great deal of documentation and initiatives that enable its employees to handle the obligations arising from the GDPR as well as possible. In this way, the respondent has sought to minimize the risk of human error and technical faults. The Dispute Chamber acknowledges that it is not always possible to exclude such problems, but expects data controllers to take the necessary measures.

Decision on the merits 59/2025 – 16/22

to take measures to limit these risks as much as possible, which the respondent has done in this case. 52.

The Dispute Chamber points out that it is also the responsibility of the respondent to take the necessary measures to ensure that it acts in accordance with the GDPR, and more specifically with the information obligations. The Dispute Chamber finds that the respondent in this case has not taken the necessary measures to verify whether the information obligations were complied with. The Dispute Chamber established that this was not the case, given the identified breach of compliance with Article 12.1 in conjunction with Article 13 GDPR (see section II.3) and the breach of the right of access due to human error that led to the anonymization on the one hand and the lack of transparency regarding the legal basis in the response to the request for access on the other hand. Consequently, there is a breach of Articles 5.2, Article 24.1, and Articles 25.1 and 25.2 GDPR.

II.5. Articles 30.1, 30.3, and 30.4 GDPR

53. The Inspection Service finds during its investigation that the respondent refuses to provide a copy of its register of processing activities and justifies this refusal based on business sensitivities. According to the Inspection Service, this constitutes a breach of Article 30.4 GDPR, as the data controller must provide a copy of its register of processing activities upon simple request from the Inspection Service so that an audit can be carried out. Since the respondent has not submitted its processing register, the Inspection Service concludes that it does not demonstrate that it has an updated register of processing activities in written form, including electronic form, as required under Articles 30.1 and 30.3 GDPR.

54. The respondent argues that it does indeed have an updated register of processing activities and that Article 30.4 GDPR does not prescribe in which form the register must be shared with the GBA.

Nevertheless, the respondent states that it understands that it must provide the register in writing upon simple request and that the GBA is also obliged to maintain the confidentiality of this information. The register was therefore submitted as an exhibit with the response. The respondent asserts that

Decision on the merits 59/2025 – 17/22

the register complies with the requirements of Article 30.1 GDPR for more than 200 processing activities.

55. The Dispute Chamber has received the register of processing activities by email and finds that this is a living document that meets the requirements of Article 30.1 GDPR. Consequently, the Dispute Chamber concludes that there is no breach of Articles 30.1, 30.3, and 30.4 GDPR.

II.6. Articles 38.1 and 39 GDPR

56. The GDPR recognizes that the Data Protection Officer is a key figure in the protection of personal data, whose appointment, position, and tasks are subject to rules. These rules help the data controller to comply with its obligations under the GDPR, but also assist the Data Protection Officer in properly performing his tasks.

57.

Article 38.1 GDPR stipulates that the data controller shall ensure that the Data Protection Officer is involved in a timely and proper manner in all matters relating to the protection of personal data.

58. Article 39.1 GDPR specifies the tasks that the Data Protection Officer must at least perform:

- a) inform and advise the data controller or the processor and the employees involved in processing about their obligations under this regulation and other Union or Member State data protection provisions;
- b) monitor compliance with this regulation, other Union or Member State data protection provisions, and the policies of the data controller or processor regarding the protection of personal data, including the allocation of responsibilities, awareness-raising and training of personnel involved in processing, and relevant audits;
- c) provide advice regarding the data protection impact assessment and monitor its implementation in accordance with Article 35, upon request;
- d) cooperate with the supervisory authority;
- e) act as a contact point for the supervisory authority on matters related to processing, including prior consultation as referred to in Article 36, and, where appropriate, consult on any other matter.

In performing his tasks, the Data Protection Officer takes into account

Decision on the Merits 59/2025 – 18/22

must take into account the risks associated with processing, as well as the nature, scope, context, and purposes of the processing (Article 39.2 GDPR).

59. The Inspection Service concludes during its inspection that the respondent does not demonstrate which information and/or advice has been provided by its data protection officer regarding the request to exercise the right of access of the complainant. Based on Article 38.1 GDPR, the data protection officer must be properly and timely involved by the data controller in all matters related to the protection of personal data. Consequently, the Inspection Service concludes that there is a violation of Article 38.1 and Article 39 GDPR.

60. The respondent disputes this finding and submits documents from which the involvement of the data protection officer should be evident. The officer has (i) internally taken the necessary steps to gather information regarding the complaint, (ii) sent a comprehensive email dated July 11, 2022, to the complainant in which all questions raised in the past months were answered again, and (iii) sent an email to the Inspection Service with responses to the questions posed and accompanying evidence. Regarding the involvement of the data protection officer in general, the respondent refers to the advice that the officer has already provided in the context of breaches related to personal data, the cooperation of the data protection officer in policy documents, and the information brochures about the GDPR that the data protection officer provides to store employees. During the hearing, the data protection officer elaborated on these matters extensively.

61.

In light of the above, the Dispute Chamber finds that the data protection officer is regularly involved in

matters relating to the protection of personal data. Specifically regarding the context of the complaint, the Dispute Chamber finds that the officer was involved in response to the present complaint, as evidenced by the documents submitted by the respondent, such as the email dated July 11, 2022, to the complainant regarding the access request and the letter dated July 12, 2022, with responses to the questions from the Inspection Service. The Dispute Chamber also finds based on the documents that the data protection officer is involved in the initiatives and measures taken by the respondent that may have implications for data protection. Additionally, there is a policy in place at the respondent regarding how and when the data protection officer can be involved, and employees are periodically trained on this.

62.

In light of the above, the Dispute Chamber finds that there is no violation of Article 38.1 and Article 39 GDPR.

III. Sanction

63. As outlined in Part II, the Dispute Chamber has determined that there is a violation of Article 6.1.f), Article 12.1 in conjunction with Article 15 GDPR, and Article 12.1 in conjunction with Article 13 GDPR, and Article 5.2 in conjunction with Article 24.1, Article 25.1, and Article 25.2 GDPR.

64. Pursuant to Article 100 of the WOG, the Dispute Chamber has the authority to:

- 1° dismiss a complaint;
- 2° order the discontinuation of prosecution;
- 3° order a suspension of the decision;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with requests from the data subject to exercise their rights;
- 7° order that the data subject be informed of the security issue;
- 8° order that the processing be temporarily or permanently frozen, limited, or prohibited;
- 9° order that the processing be brought into compliance;
- 10° order the rectification, limitation, or deletion of data and notification thereof to the recipients of the data;
- 11° order the withdrawal of the recognition of certification bodies;
- 12° impose fines;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international institution;
- 15° transfer the file to the public prosecutor's office in Brussels, which will inform it of the consequences given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

65. In determining the sanction due to the violation of Articles 5.1.a) GDPR in conjunction with Article 6.1.f) GDPR regarding the sending of unsolicited direct marketing emails, the Dispute Chamber takes into account the fact that the sending of these emails was the result of a technical error in the context of a data migration, that the respondent had conducted the necessary risk analyses prior to the data migration, that it has not been demonstrated that there were any other affected parties, and that the respondent has appropriately responded to the disputed processing, thereby allowing the complainant to directly...

Decision on the Merits 59/2025 – 20/22

marketing emails were no longer received. The Dispute Chamber therefore rules that in this specific situation, a non-prosecution suffices.

66. In determining the sanction resulting from the infringement of Article 12.1 GDPR in conjunction with Article 15 GDPR, the Dispute Chamber takes into account the fact that there was a human error that led to certain data being anonymized, and that the respondent made efforts to recover the personal data as timely and completely as possible. However, the Dispute Chamber points out that the respondent was not transparent about the legal basis on which the direct marketing emails were sent, despite the explicit and repeated request for this information from the complainant.

The Dispute Chamber notes that the established infringement of the accountability obligation based on

Article 5.2, Article 24.1, and Article 25.1 and 25.2 GDPR arises from the aforementioned infringement of the provisions regarding the right of access. The Dispute Chamber is therefore of the opinion that a reprimand is appropriate in this specific situation for both infringements combined.

67. In determining the sanction resulting from the infringement of Article 12.1 GDPR in conjunction with Article 13 GDPR concerning the information obligations, the Dispute Chamber finds that there was unclear information regarding the legal basis on which the disputed processing was based.

Additionally, the Dispute Chamber established that the privacy statement at the time of the disputed processing was not complete. The Dispute Chamber takes into account the fact that the respondent has cooperated during the procedure and has incorporated the comments from the Inspection Service into a new privacy statement. The Dispute Chamber points out that the established infringement of the accountability obligation based on Article 5.2, Article 24.1, and Article 25.1 and 25.2 GDPR arises from the aforementioned infringement of the information obligations. The Dispute Chamber is therefore of the opinion that a reprimand in this specific situation suffices for both related infringements.

68. For the other findings of the Inspection Service, the Dispute Chamber proceeds to a dismissal as no infringements of the GDPR could be established in this regard.

IV. Publication of the Decision

69. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority. However, it is not necessary for the identification details of the parties to be disclosed directly for this purpose.

Decision on the Merits 59/2025 – 22/22

Pursuant to Article 108, § 1 of the WOG, an appeal against this decision can be lodged with the Market Court (Court of Appeal Brussels) within a period of thirty days from the notification, with the Data Protection Authority as the respondent.

Such an appeal can be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Code of Civil Procedure. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit information system of Justice (Article 32ter of the Code of Civil Procedure).

(Get). Hielke HIJMANS

Chairman of the Dispute Chamber

3 The statement must mention under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, if applicable, their capacity and their national register or company number;

3° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

4 The statement with its annex is sent by registered letter to the clerk of the court or filed at the registry in as many copies as there are parties involved.